

from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement. Each written objection must be numbered consecutively and must: [i] identify the name of the document in which the specific material objected to is located [and] [q] quote or set forth the objectionable statement or material..." (Cal. Rules of Court, rule 3.1354(b).)

Here, Defendants put forth the entire disputed material fact as well as the evidence Plaintiffs have adduced in support. Their objections appear to be both to the facts and the evidence themselves. The grounds for objection do not distinguish between the additional material fact or the multiple types of evidence offered in support, leaving it for the Court to determine which ground applies to what evidence or testimony.

The objections are therefore procedurally defective.

21. 9:00 AM CASE NUMBER: MSC21-02115
CASE NAME: K.C. VS DOE 1 COUNTY
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: CALIFORNIA DEPARTMENT OF SOCIAL SERVICES
TENTATIVE RULING:

Before the Court is Defendant State of California's, by and through California Department of Social Services, Motion for Judgment on the Pleadings of the Second Amended Complaint ("MJOP").

Defendant requests judicial notice of the FAC and the Court's order sustaining its demurrer to the FAC. Plaintiff requests judicial notice of the SAC as well as the Court's order sustaining its demurrer to the FAC. Both requests for judicial notice are **granted**. (Evid. Code § 452(d).)

Defendant's MJOP is **granted without leave to amend** as outlined below.

Procedural Background

Plaintiff filed her initial Complaint on October 12, 2021. The Complaint included two causes of action: (1) negligence against "Does 1 County", and (2) negligence against Does 2-25. On November 23, 2021, Plaintiff filed her First Amended Complaint, naming Contra Costa County as Doe 1. The FAC again alleged the same two causes of action. The County filed an Answer on January 3, 2022.

On January 9, 2025, Plaintiff filed an "Amendment to Complaint Naming Does 2 through 4." Those Does were identified as: Doe 2: California Department of Social Services ("CDSS"); Does 3: Health Care Delivery Services, Inc.; and (3) Lions Gate Juvenile Court School. The docket does not show any proof of service indicating that any of the newly named Does were ever served with the FAC. However, on April 18, 2025, the State of California by and through the California Department of Social Services filed a demurrer to the FAC. The demurrer included a declaration indicating that counsel for the State met and conferred with Plaintiff's counsel by telephone and they could not reach an agreement on the demurrer.

On August 13, 2025, Plaintiff attempted to file a "Third Amended Complaint." The filing was rejected by the Court and Plaintiff was informed that she needed leave of Court to file a Third Amended Complaint. Thereafter, on August 18, 2025, Plaintiff filed an Opposition "and agreement to file

amended complaint.”

On August 26, 2025, the Court issued its tentative ruling sustaining the State’s demurrer with leave to amend. Plaintiff filed the SAC on September 17, 2025. The State filed its MJOP on November 24, 2025.

Standard for Motion for Judgment on the Pleadings

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) Therefore, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, Civ. Pro. Before Trial (The Rutter Group 2010) p. 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.)

In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (The Rutter Group 2008) p. 7:295.)

Code of Civil Procedure § 438(g)(1)

Plaintiff argues that the State’s MJOP is barred due to the application of that above Code section as the MJOP is based on the same arguments made in the State’s earlier demurrer. Plaintiff contends that a “statutory motion for judgment on the pleadings ‘does not lie’ on grounds previously raised by demurrer unless there has been a ‘material change in applicable case law or statute’ since the demurrer was overruled,” citing section 438(g)(1) and *Yancey v. Superior Court* (1994) 28 Cal.App.4th 558, 562.

Plaintiff’s argument is not well taken. First, Plaintiff concedes that the State’s arguments were previously raised in its earlier demurrer. Second, Plaintiff’s contention that “the demurrer was overruled” is inaccurate. As the Court’s earlier ruling on the State’s demurrer, which Plaintiff obtained judicial notice of, makes clear the “State’s demurrer is **sustained** for the reasons set forth therein.” (P’s RJN Ex. 2.)

The State is well within its rights to re-raise arguments raised in its demurrer to the FAC which were sustained as a basis for again arguing that the SAC is deficient for the same reasons.

Analysis

The State argues that the SAC fails to allege facts establishing “any viable duty violated by CDSS.” The State’s arguments mirror those made in its demurrer to the FAC in that the State contends that it does not license or have any authority over the Lions Gate facility – which is the site of the alleged abuse.

The original complaint alleged that the Plaintiff was a resident at the Lions Gate facility during all relevant times. In the original complaint and FAC (which added the State as Doe 2), Lions Gate was alleged to be a “juvenile court school.” The Court sustained the State’s demurrer to the

Complaint/FAC based on the State's argument that it was not involved with such facilities. Plaintiff was granted leave to amend.

Without explanation Plaintiff change the description of Lions Gate from a "juvenile court school" (Complaint ¶ 4) to an "emergency shelter group home" (SAC ¶ 4.) The type of facility that Lions Gate is, and whether the State has control over that facility, is at the heart of the State's Motion. Without explicitly stating as such, the State argues that the sham pleading doctrine applies as the allegations in the SAC describing what Lions Gate is are inconsistent with the original complaint – and Plaintiff has failed to assert a reason for the change. The State argues that Plaintiff cannot make this change without explaining the basis for the change.

Sham Pleading Rule

"Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers..." (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425.) "A noted commentator has explained, 'Allegations in the original pleading that rendered it vulnerable to demurrer or other attack cannot simply be omitted without explanation in the amended pleading. The policy against sham pleadings requires the pleader to *explain* satisfactorily any such omission.'" (*Ibid.* quoting Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2005) ¶ 6.708, p.6-142.1. [NOTE – this comment remains in the 2025 Rutter Guide.]

"The sham pleading doctrine is not 'intended to prevent honest complainants from correcting erroneous allegations ... or to prevent correction of ambiguous facts. [citation.] Instead, it is intended to enable courts 'to prevent an abuse of process.'" (*Deveny*, supra, 139 Cal.App.4th at 426.) "A pleader may not attempt to breathe life into a complaint by omitting relevant facts which made his previous complaint defective." (*Hills Transp. Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 713.)

"If a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations." (*Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 147, 152.) As noted above, the Court has taken judicial notice of the original complaint.

"'Where a verified complaint contains allegations destructive of a cause of action, the defect cannot be cured in subsequently filed pleadings by simply omitting such allegations without explanation.' [multiple citations omitted] 'In such a case the original defect infects the subsequent pleading so as to render it vulnerable to a demurrer.'" (*Hendy v. Losse* (1991) 54 Cal.3d 723, 742-43.)

"However, we have also made it clear that 'a party should be allowed to correct a pleading by omitting an allegation which, it appears, was made as the result of mistake or inadvertence.'" (*Id.* at 743 quoting *Reichert v. General Ins. Co.* (1968) 68 Cal.2d 822, 836.) "That rule applies even when a complaint is not verified." (*Ibid.*)

Plaintiff argues that the Court must accept the allegations in the SAC as true. As the authority cited by Plaintiff states: "**Generally**, 'an amendatory pleading supersedes the original one, which ceases to

perform any function as a pleading. ‘Such amended pleading supplants all prior complaints. ...’” (*LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 875 fn.5 internal citations omitted, emphasis added.) The introductory ‘generally’ emphasizes that this is not always the case. For example, when a party raises the ‘sham pleading doctrine.’

Plaintiff also argues that the sham pleading doctrine does not apply because the Court, when sustaining the earlier demurrer with leave to amend “granted Plaintiff leave specifically to address the deficiencies in the prior pleading, including the First Amended Complaint’s characterization of Lions Gate as a juvenile court school.” (Opp. at 9:20-23.) Plaintiff contends it “did exactly that in the SAC by pleading Lions Gate as an ‘emergency shelter group home.’” (Opp. at 9:23-24.) As such, Plaintiff argues that “[c]orrecting a factual error in a prior pleading pursuant to express leave of court is not the improper gamesmanship that *Deveny* prohibits.” (Opp. at 9:24-25.)

Plaintiff does not explain their reasoning for this position. There is nothing in *Deveny* or any of the other sham pleading authority that says if an initial demurrer is sustained with leave to amend that any subsequent factual changes fall outside the sham pleading doctrine. The cases appear to state just the opposite: “Moreover, any inconsistencies with prior pleadings must be explained; if the pleader fails to do so, the court may disregard the inconsistent allegations.” (*Vallejo Development Co. v. Beck Development Co.* (1994) 24 Cal.App.4th 929, 946 citation omitted.) “Accordingly, a court is ‘not bound to accept as true allegations contrary to factual allegations in former pleading in the same case.’” (*Ibid.* quoting *Potter v. Arizona So Coach Lines, Inc.* (1988) 202 Cal.App.3d 126, 133, fn. 2.)

Ownes v. Kings Supermarket (1988) 198 Cal.App.3d 379 is instructive. According to the original complaint, plaintiff suffered injuries when he was hit by a car while on a public street adjacent to defendant’s property. Defendant demurred arguing that it did not have the power to regulate a public street and as such did not owe plaintiff any duty. Plaintiff did not dispute that the accident occurred on a public street but argued that defendant had a duty under a ‘special use’ theory. The demurrer was sustained with leave to amend. The first amended complaint again alleged that the accident occurred on a public roadway, but defendants used the area for a ‘commercial purpose’ and therefore owed a duty to plaintiff. The Court again sustained defendant’s demurrer with leave to amend.

Plaintiff’s second amended complaint was “identical in nearly all respects to the first amended complaint except that it included an allegation that plaintiff was on defendants’ premises when he was injured.” (*Id.* at 383.) Defendant demurred again, raising the ‘sham pleading’ doctrine. The court explained that while it is required to assume the truth of the factual allegations of a complaint, “an exception exists where a party files an amended complaint and seeks to avoid the defects of a prior complaint either by omitting the facts that rendered the complaint defective or by pleading facts inconsistent with the allegations of prior pleadings.” (*Id.* at 383-84.)

In such a circumstance, the policy against sham pleading permits the court to take judicial notice of the prior pleading and requires that the pleader explain the inconsistency.” (*Id.* at 384.) “If he fails to do so the court may disregard the inconsistent allegations and read into the amended complaint the allegations of the superseded complaint.” (*Ibid.* citing *Hills Trans. Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 709-11.)

The court found that the doctrine applied in that case. As the court explained:

The original complaint clearly alleged that plaintiff was injured in the street adjacent to the supermarket premises. The same allegations were made in the first amended complaint. Only when it became apparent to plaintiff that the court would not accept his argument that the alleged 'special use' of the public street by the supermarket imposed a duty, did plaintiff allege, for the first time, that the injury occurred on 'defendant's premises' rather than in the street. ***Plaintiff offered no explanation for this inconsistency*** to the court below or on appeal. The conclusion is inescapable that this amendment was made solely for the purposes of avoiding a demurrer. Thus, the court properly disregarded the allegation that the accident occurred on defendants' premises. (*Ibid.* emphasis added.)

Here, as in *Owen*, there is no explanation for the pleading inconsistency. As in *Owen*, it appears that the amendment was made solely for the purpose of avoiding the demurrer. The State's observation that the SAC continues to allege that the alleged abusers were "detention center guards and/or officers" supports this finding. (SAC at ¶¶ 5, 31, 36, 38-40.) These allegations are consistent with the facility at issue being a 'detention center' or juvenile court facility – not an emergency shelter group. As such, the SAC at least appears to be internally inconsistent in its allegations.

Plaintiffs "may avoid the effect of the sham pleading doctrine by alleging an explanation for the conflicts between the pleadings." (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 344 citations omitted.) Plaintiff has failed to do so in this instance.

Leave to Amend

The State argues that leave to amend should be denied as Plaintiff cannot fix the above pleading issues. Plaintiff argues that "denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment," quoting *Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.)

Plaintiff was already granted leave to amend to attempt to fix the issues with its initial complaint. Plaintiff did so by merely changing the type of facility Lions Gate is alleged to be without explanation for the change. "[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

"The plaintiff bears the burden of proving there is a reasonable possibility of amendment. [¶] To satisfy that burden ... a plaintiff 'must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.' The assertion of an abstract right to amend does not satisfy this burden. The plaintiff must clearly and specifically set forth the 'applicable substantive law' and the legal basis for amendment, i.e., the elements of the cause of action and authority for it. Further, the plaintiff must set forth factual allegations that sufficiently state all required elements of that cause of action. Allegations must be factual and specific, not vague or conclusory.'" (*PGA West Residential Assn. v. Hulven International, Inc.* (2017) 14 Cal.App.5th 156, 189 quoting *Rossberg v. Bank of America, N.A.* (2013) 219 Cal.App.4th 1481, 1491 internal citations

omitted.)

This is especially true here when the sham pleading doctrine is in play.

Plaintiff's contention that the earlier demurrer "was sustained not on the merits but because the prior opposition was procedurally deficient," is inaccurate. While the Court did highlight the procedural problems with Plaintiff's opposition to the demurrer, the Court did substantively rule on it. As noted in the ruling, the "State's demurrer is sustained for the reasons set forth therein." The Court emphasized that since that was "the first time the Court has addressed the issues raised in the State's demurrer, it will grant Plaintiff leave to amend to address them."

Plaintiff was given an opportunity to address the problems pointed out by the State. Plaintiff did so by changing the factual allegations regarding the type of facility that Lions Gate is without explanation for the change. As Plaintiff has had an opportunity to amend and has failed to meet its burden to show how it can amend again to allege a valid claim against the State, leave to amend is denied.

Conclusion

Here, as in *Owens v. Kings Supermarket*, no explanation for the pleading inconsistency has been offered. "A court has inherent power by summary means to prevent an abuse of its process and peremptorily to dispose of sham causes of action." (*Amid v. Hawthorne Cmty. Medical Group* (1989) 212 Cal.App.3d 1383, 1390-91.) The State's motion for judgment on the pleadings is **granted without leave to amend**.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

*HEARING ON MOTION FOR DISCOVERY ABATE, OR ALTERNATIVELY, TO COMPEL JOINDER AND CONTINUE TRIAL

FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC

TENTATIVE RULING:

Summary

Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joinder and Continue the Trial and for monetary, issue and/or terminating sanctions against Plaintiff Lynette Westbrook ("Plaintiff") is **denied** in part as moot, and **reserved** as set forth herein.

Background

This is a wrongful death action where Plaintiff Lynetta Westbrook, individually, and as heir and successor-in-interest to Alex Pollard, deceased, seeks causes of action for violation of the Elder and Dependent Adult Civil Protection Act (Welfare & Institutions Code § 15600, et. Seq), for Negligence, and for Wrongful Death. Plaintiff claims that Defendant, which operates the skilled nursing facility